

Deposition of Jack Armour, an employee of Powers Fasteners
Deposition conducted on March 21, 2007
(Number of pages including this cover sheet – 15)

UNITED STATES OF AMERICA
 NATIONAL TRANSPORTATION SAFETY BOARD
 OFFICE OF ADMINISTRATIVE LAW JUDGES

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Investigation of:

CEILING COLLAPSE OF THE
 CENTRAL ARTERY TUNNEL PROJECT,
 BOSTON, MASSACHUSETTS,
 JULY 10, 2006,

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Docket No.: HWY-06-MH-024

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Interview of: JACK ARMOUR

Law Office of John Wall
 One Commercial Wharf West
 Boston, MA 02110

Wednesday,
 March 21, 2007

The above-captioned matter convened, pursuant to
 notice, at 9:07 a.m.

BEFORE: MARK W. BAGNARD

APPEARANCES:

MARK W. BAGNARD
Highway Accident Investigator
National Transportation Safety Board
Arlington, TX
(817) 652-7843

DANIEL S. WALSH, P.E.
Highway Accident Investigator
National Transportation Safety Board
Arlington, TX
(817) 652-7844

DENNIS J. COLLINS
Human Performance Investigator
National Transportation Safety Board

CARL R. SCHULTHEISZ, Ph.D.
Materials Research Engineer
Materials Laboratory (RE-30)

JOHN WALL, ESQ.
Boston, MA

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I N T E R V I E W

(9:07 a.m.)

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3 MR. BAGNARD: My name is Mark Bagnard, and that's
4 spelled B-a-g-n-a-r-d, and that's Mark with a K. I am the
5 investigator in charge with the National Transportation Safety
6 Board in regard to Highway Accident No. HWY-06-MH-024, which is
7 the investigation of the ceiling collapse of the Central Artery
8 Tunnel project. This incident occurred on July 10, 2006. We
9 are in Boston to interview a Mr. Jack Armour, employed with
10 Powers Fasteners. This interview is in association with the
11 National Transportation Safety Board's investigation of this
12 incident.

INTERVIEW OF JACK ARMOUR

BY MR. BAGNARD:

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15 Q. Mr. Armour, I would like to start off with just some
16 general questions in regard to your background, both
17 educationally and with your employment, both with Power
18 Fasteners and in the jobs leading up to that job. First, I
19 would like to ask you, what is your educational background,
20 sir?

21 A. My educational background -- I attended Norwood
22 Public Schools in Norwood, Massachusetts, and then attended and
23 graduated Babson College in Wellesley, Massachusetts.

24 Q. Okay, and through the college, did you obtain a
25 degree?

1 A. Yes, I did.

2 Q. And what was that in, please?

3 A. Bachelor of Science in Management.

4 Q. Okay, and what year did you graduate from college?

5 A. I believe it was December of 1984.

6 Q. Following your graduation, at that time, did you
7 become employed with Power Fasteners or did you have a job
8 prior to that?

9 A. On the advice of my counsel, I respectfully decline
10 to answer and I rely on my privilege against self incrimination
11 under the Fifth Amendment to the Constitution of the United
12 States and under Article 12 of the Massachusetts Declaration of
13 Rights which privileges extend not only to answers that would
14 in themselves, support a conviction under a criminal statute,
15 but likewise to answers that which would furnish a link in a
16 chain of evidence needed to prosecute me for a crime.

17 Q. And can you tell me how long you've been employed
18 with Powers Fasteners?

19 MR. WALL: I'll have him give the short answer,
20 rather than refer it along.

21 MR. BAGNARD: Okay, if the short answer is in
22 reference to the answer he just gave us, then I think that will
23 save us all some time.

24 MR. WALL: Maybe we can take a minute here to get
25 some coffee?

1 MR. BAGNARD: Sure.

2 BY MR. BAGNARD:

3 Q. Mr. Amour, your current position with Power Fasteners
4 is stated on your business card as you are the manager or area
5 manager?

6 A. I decline based on the Fifth Amendment and Article
7 12.

8 Q. Okay. Would you have held that position in October
9 of 1999?

10 A. I decline to answer, based on the Fifth Amendment and
11 Article 12.

12 Q. What position would you have held with the company in
13 October 1999?

14 A. I decline to answer, based on the Fifth Amendment and
15 Article 12.

16 Q. Okay. Since the time that you have been employed
17 with Powers Fasteners, have you received any type of training
18 through the company?

19 A. I decline to answer, based on the Fifth Amendment and
20 Article 12.

21 Q. And your current position with Powers Fasteners is
22 there a requirement or other specification that would provide
23 for you to have a working knowledge of the company's products?

24 A. I decline to answer, based on the Fifth Amendment and
25 Article 12.

1 Q. And as part of the subpoena for this particular
2 interview, there was instructions in there for you to bring
3 with you, documents related to our investigation, and these
4 documents would have included items such as personal notes, or
5 reports generated from your activities in the HOV Tunnel in
6 October of 1999. Did you bring any documents, notes, or other
7 materials with you in relationship to this interview?

8 A. No.

9 Q. Okay. Do you not have any or did you just not bring
10 any?

11 A. I decline to answer, based on the Fifth Amendment and
12 Article 12.

13 Q. All right, well that concludes my questioning of Mr.
14 Armour. I think at this point, we will go with Investigator
15 Dennis Collins.

16 MR. COLLINS: Thank you. That's Dennis, D-e-n-n-i-s,
17 Collins, C-o-l-l-i-n-s. I am a senior accident investigator
18 for the National Transportation Safety Board.

19 BY MR. COLLINS:

20 Q. What training does Powers typically provide for the
21 users of the epoxy systems and -- we'll start there. What
22 training does Powers typically provide to the users of its
23 epoxy?

24 A. I decline to answer, based on the Fifth Amendment and
25 Article 12.

1 Q. All right. Were you ever involved in the
2 presentation or teaching of such training?

3 A. I decline to answer, based on the Fifth Amendment and
4 Article 12.

5 Q. Do you have contact information or names for anyone
6 who is responsible for providing such training?

7 A. I decline to answer, based on the Fifth Amendment and
8 Article 12.

9 Q. Is the training provided now by Powers the same as
10 provided in 1999?

11 A. I decline to answer, based on the Fifth Amendment and
12 Article 12.

13 Q. Do you recall the problem in the tunnel in 1999 with
14 the anchors displacing from the ceiling?

15 A. I decline to answer, based on the Fifth Amendment and
16 Article 12.

17 Q. Do you recall meeting in the tunnel related to that
18 problem?

19 A. I decline to answer, based on the Fifth Amendment and
20 Article 12.

21 Q. Do you recall any potential causes discussed, related
22 to that displacement?

23 A. I decline to answer, based on the Fifth Amendment and
24 Article 12.

25 Q. Do you recall a resolution of that problem?

1 A. I decline to answer, based on the Fifth Amendment and
2 Article 12.

3 Q. Did Powers consider rechecking those anchors for
4 movement after the initial solution provided?

5 A. I decline to answer, based on the Fifth Amendment and
6 Article 12.

7 MR. COLLINS: Mark, I think that concludes my
8 questions.

9 MR. BAGNARD: We will now proceed with Carl's
10 questioning.

11 MR. SCHULTHEISZ: My name is Carl Schultheisz. First
12 name is C-a-r-l, last name is S-c-h-u-l-t-h-e-i-s-z.

13 BY MR. SCHULTHEISZ:

14 Q. In your position at Powers, do you deal with all
15 anchor systems, mechanical as well as epoxy anchor systems?

16 A. I decline to answer, based on the Fifth Amendment and
17 Article 12.

18 Q. Did you have any role or know any of the details of
19 the relationship between Powers and Newman, Renner, and Colony?

20 A. I decline to answer, based on the Fifth Amendment and
21 Article 12.

22 Q. Was it unusual that you would be called in to
23 troubleshoot?

24 A. I decline to answer, based on the Fifth Amendment and
25 Article 12.

1 Q. Does Powers have any guidelines about post-
2 installation inspections?

3 A. I decline to answer, based on the Fifth Amendment and
4 Article 12.

5 Q. Do you participate in any industry groups like the
6 ICC, the International Code Council, or the ASTM?

7 A. I decline to answer, based on the Fifth Amendment and
8 Article 12.

9 Q. Are you aware or part of the planning of the testing
10 that Powers carries out for the ICC for the development of
11 their evaluation reports and/or the literature/data that is
12 published?

13 A. I decline to answer, based on the Fifth Amendment and
14 Article 12.

15 Mr. SCHULTHEISZ: I think that concludes my
16 questioning.

17 MR. BAGNARD: Okay, and now we will proceed with Dan
18 Walsh.

19 MR. WALSH: My name is Dan Walsh, investigator with
20 the Office of Highway Safety.

21 BY MR. WALSH:

22 Q. Who is the manufacturer and distributor of the Power
23 Fast epoxy? I understand Sika makes the epoxy, Power Fasteners
24 packages and distributes it, and Newman, Renner, and Colony
25 redistributes it.

1 A. I'm sorry, what was the question?

2 Q. Who is the manufacturer and distributor of the Power
3 Fast epoxy?

4 A. I decline to answer, based on the Fifth Amendment and
5 Article 12.

6 Q. What did the package, label, and invoices indicate
7 from Sika to Power Fasteners, from Power Fasteners to NRC, and
8 from NRC to Modern Continental Company?

9 A. I decline to answer, based on the Fifth Amendment and
10 Article 12.

11 Q. What is the relationship between Power Fasteners and
12 NRC?

13 A. I decline to answer, based on the Fifth Amendment and
14 Article 12.

15 Q. Why was the NRC 1000 Gold Epoxy used in the I-90
16 East-bound connector tunnel from June 1999 through March 2000,
17 without being on the Massachusetts Highway Department of
18 State's qualified list?

19 A. I decline to answer, based on the Fifth Amendment and
20 Article 12.

21 Q. Is there any creep data or characteristics for the
22 standard set epoxy and fast set epoxy in Power Fasteners'
23 Specification and Design Manual and Power Fasteners' Fastening
24 Handbook?

25 A. I decline to answer, based on the Fifth Amendment and

1 Article 12.

2 Q. Are you planning to add information regarding creep
3 into the manual and handbook at any time in the future?

4 A. I decline to answer, based on the Fifth Amendment and
5 Article 12.

6 MR. WALSH: That's it for questions.

7 MR. BAGNARD: Okay. All right. I would like to
8 follow up for just a minute here.

9 BY MR. BAGNARD:

10 Q. Mr. Armour, you graduated from college in 1984, is
11 that correct?

12 A. Correct.

13 Q. Okay, and I'm sorry, I'm having a little problem here
14 with my notebook, but what was your degree?

15 A. In management.

16 Q. In Business Management?

17 A. Business Management, yes.

18 Q. Okay, what type of courses would you have taken at
19 that time to successfully achieve that degree?

20 A. It was general business background. I took
21 accounting classes, finance classes, organizational behavior-
22 type classes, management, marketing-type classes, and an array
23 of liberal arts to round off.

24 Q. Were any other classes outside of just what I will
25 call the core courses or classes? Would have taken anything

1 like chemistry, or physics, or any classes along those lines?

2 A. No.

3 Q. Okay. Do you have any background, whether it was
4 through college or other sources, an educational background in
5 chemical properties or chemistry at-large? Do you have any
6 familiarity in that area?

7 A. No.

8 Q. And your employment with Powers Fasteners, would your
9 not having an engineering degree or a chemical engineering
10 degree, affect your daily ability to do your job?

11 A. I decline to answer, based on the Fifth Amendment and
12 Article 12.

13 Q. Okay.

14 MR. BAGNARD: And at that, I have no further
15 questions. Gentlemen?

16 That concludes the interview of Jack Amour, by the
17 National Transportation Safety Board.

18 (Whereupon, at 9:44 a.m., the interview in the above-
19 entitled matter was concluded.)

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CERTIFICATE

This is to certify that the attached proceeding before the

NATIONAL TRANSPORTATION SAFETY BOARD

IN THE MATTER OF: Ceiling collapse of the
Central Artery Tunnel Project
Boston, Massachusetts
July 10, 2006
Interview of Jack Armour

DOCKET NUMBER: HWY-06-MH-024

PLACE: Boston, Massachusetts

DATE: March 21, 2007

was held according to the record, and that this is the
original, complete, true and accurate transcript which has been
compared to the recording accomplished at the hearing.

Judy O'Shea
Reporter